

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

THE INDIAN CONNECTION LLC, *Complainant*

v.

CMA CGM (AMERICA) LLC; PRIDEL PRIVATE LIMITED;
AND EAGLE MARITIME OF AMERICA INC., *Respondents*.

DOCKET NO. 26-11

Served: September 15, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON VOLUNTARY DISMISSAL

On August 7, 2026, the Commission issued a Notice of Filing of Complaint and Assignment ("Notice") for this proceeding. Complainant, The India Connection LLC, alleges that three Respondents violated 46 U.S.C. §§ 41102(c) and 41104(a)(14) by assessing detention charges during periods when Complainant was unable to retrieve or return specified containers due to circumstances beyond Complainant's control, failing to consider requests for waiver or dispute resolution, and other acts or omissions.

On August 31, 2026, Complainant filed a Stipulation of Dismissal Pursuant to 46 C.F.R. § 502.72(a)(2) ("Vol. DS 1"). The document cites to the Commission Rule 72 (a)(2) stating:

(2) By stipulation of the parties. The parties may dismiss an action at any point without an order from the presiding officer by filing a stipulation of dismissal signed by all parties who have appeared. In the stipulation, the parties must certify that no settlement on [the] merits was reached. Unless the stipulation states otherwise, the dismissal is without prejudice.

Vol. DS 1 at 1-2; 46 C.F.R. § 502.72(a)(2). No stipulation of dismissal signed by all the parties or a certificate of service on Respondents was attached to the voluntary dismissal.

By email dated September 1, 2026, the Office of the Secretary requested that Complainant clarify whether it sought dismissal under Commission Rule 72(a)(1), which Complainant may submit without Respondents' signatures, or Commission Rule 72(a)(2), which requires the signatures of each of the three Respondents. Further, Complainant was instructed to serve the corrected document on the Respondents by including them on the email filing to the Secretary.

By email dated September 9, 2026, Complainant resubmitted the same document citing Commission Rule 72(a)(2), again verifying that no settlement on the merits was reached and

including a certificate of service stating that “the stipulation” was served on the three Respondents at their respective email addresses. Vol. DS 2 at 1-2. Specifically, Complainant states: “The Complainant (*pro-se*), through its (sic) authorized representative, certifies that no settlement on the merits was reached.” *Id.* at 2. In the email, however, Complainant states that a settlement *was* reached:

The India Connection LLC respectfully clarifies that it intends to proceed with the voluntary dismissal of the present proceeding pursuant to 46 C.F.R. § 502.72(a)(2), and not pursuant to 46 C.F.R. § 502.72(a)(1). The procedure contemplated under 46 C.F.R. § 502.72(a)(1) is applicable where the Complainant seeks voluntary dismissal of the proceeding without there having been any settlement between the parties. In the present case, however, the parties have amicably arrived at and executed a Settlement Agreement inter-se, pursuant to which the disputed matter has been amicably resolved and the present proceeding is sought to be dismissed with prejudice. The aforesaid Settlement Agreement, however, does not constitute or record any settlement on the merits of the claims or defences raised in the present proceeding. There has been no adjudication, determination, admission, or finding on the merits of the claims or defences of any party. The Settlement Agreement merely records the parties' mutual understanding and commercial resolution of the disputed matter and provides for the withdrawal and dismissal of the present proceeding. Accordingly, the present case falls within the scope of 46 C.F.R. § 502.72(a)(2), which specifically contemplates dismissal by stipulation where the parties certify that no settlement on the merits was reached. The India Connection LLC has therefore elected to proceed under the said provision and not under 46 C.F.R. § 502.72(a)(1).

Email to Secretary@FMC.gov and Judges@fmc.gov dated September 9, 2026.

Further, Complainant states in the email that it did not obtain signatures of the Respondents as required by Commission Rule 72(a)(2) because no representative of those parties had made an appearance in the proceeding.

Despite Complainant's well-meaning attempts to voluntarily dismiss this proceeding, the filing remains deficient. If no settlement was reached, and because no response to the complaint has been filed, Complainant could have voluntarily dismissed the proceeding under Rule 72(a)(1), but as it states in the email, a settlement was reached. As the settlement disposes of the merits of the proceeding by dismissal, it is a settlement on the merits. A settlement does not require adjudication, determination, admissions, or findings on the merits of the claims or defences, only that the parties have agreed that their settlement resolves the claims raised in the proceeding.

In the event of a settlement, dismissal must be sought pursuant to an order by the undersigned presiding officer. Accordingly, Complainant is **ORDERED** to submit a motion to voluntarily dismiss the proceeding pursuant to Rule 72(a)(3). The settlement agreement must be attached to the motion and include the terms of the settlement (for example, Respondents have waived detention charges for the containers identified in the complaint, or Respondents have agreed to accept half of the amount charged, or whatever terms were agreed to, regardless of

whether a monetary settlement was reached), and state that the settlement does not violate any law or policy and is free of fraud, duress, undue influence, mistake, or other defects which might make it unapprovable. *See* 46 C.F.R. 502.72(a)(3).

If the motion for voluntary dismissal and settlement agreement are not filed by September 22, 2026, Respondents are **ORDERED** to respond to the complaint by September 25, 2026. Failure by Respondents to respond may lead to a default decision against them.



Linda S. Harris Crovella
Administrative Law Judge